

25NNCV04643 25NNCV04643

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[TENTATIVE] ORDER GRANTING PLAINTIFF'S MOTION

FOR ATTORNEY'S FEES IN THE AMOUNT OF \$24,065.26

I. INTRODUCTION

On July 1, 2025, Plaintiff William Gilmore ("Plaintiff") filed this action against Defendant Subaru of America, Inc. ("Defendant") asserting claims under the Song-Beverly Consumer Warranty Act arising from alleged defects in a 2023 Subaru Ascent. The parties ultimately resolved the matter through Defendant's Code of Civil Procedure section 998 offer, which Plaintiff accepted on January 23, 2026.

On June 17, 2026, Plaintiff filed the instant motion for attorney's fees. Defendant filed an opposition on July 1, 2026, and Plaintiff filed a reply on July 8, 2026.

Evidentiary objections

The Court OVERRULES Plaintiff's evidentiary objections.

II. LEGAL STANDARD

Attorneys' fees are allowed as costs when authorized by contract, statute, or law. (Code Civ. Proc, § 1033.5, subd. (a)(10)(B).)

In a lemon law action, costs and expenses, including attorney's fees, may be recovered by a prevailing buyer

under the Song-Beverly Act. (See Civ. Code, § 1794(d).) Section 1794 provides:

“If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney’s fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.” (Civ. Code, § 1794 [emphasis added].) Thus, the statute includes a “reasonable attorney’s fees” standard.

The attorney bears the burden of proof as to “reasonableness” of any fee claim. (Code Civ. Proc., § 1033.5(c)(5).) This burden requires competent evidence as to the nature and value of the services rendered. (*Martino v. Denevi* (1986) 182 Cal.App.3d 553, 559.) “Testimony of an attorney as to the number of hours worked on a particular case is sufficient evidence to support an award of attorney fees, even in the absence of detailed time records.” (*Id.*)

A plaintiff’s verified billing invoices are prima facie evidence that the costs, expenses, and services listed were necessarily incurred. (See *Hadley v. Krepel* (1985) 167 Cal.App.3d 677, 682.) “In challenging attorney fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence. General arguments that fees claimed are excessive, duplicative, or unrelated to not suffice.” (*Lunada Biomedical v. Nunez* (2014) 230 Cal.App.4th 459, 488, quoting *Premier Med. Mgmt. Sys., Inc. v. California Ins. Guarantee Ass’n* (2008) 163 Cal.App.4th 550, 564.) The Court has discretion to reduce fees that result from inefficient or duplicative use of time. (*Horsford*, supra, 132 Cal.App.4th at 395.)

In determining a reasonable attorney fee, the trial court begins with the lodestar, i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate. (*Warren v. Kia Motors America, Inc.* (2018) 30 Cal.App.5th 24, 36.) The lodestar may then be adjusted based on factors specific to the case in order to fix the fee at the fair market value of the legal services provided. (*Ibid.*) These facts include (1) the novelty and difficulty of the questions involved,

(2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award. (Ibid.)

III. ANALYSIS

Entitlement to Attorney's Fees

Plaintiff seeks \$25,864.80 in attorney's fees, reflecting a lodestar of \$21,554.00 enhanced by a 1.2 multiplier, and \$2,511.26 in costs pursuant to Civil Code section 1794, subdivision (d). The parties resolved this matter through a Code of Civil Procedure section 998 offer, which Plaintiff accepted on January 23, 2026.

Thus, Plaintiff is the prevailing party and entitled to reasonable attorney's fees.

Reasonableness of Fees

Reasonable Hourly Rate:

To calculate a lodestar amount, the Court must first determine whether the hourly rates sought are reasonable. A reasonable hourly rate is that prevailing in the community for similar work performed by attorneys of comparable skill and experience. (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1133.)

Here,

Plaintiff seeks compensation for attorney Joseph A. Kaufman at hourly rates of \$595 for work performed in 2025 and \$615 for work performed in 2026, and for attorney Christopher R. Hunt at hourly rates of \$375 for work performed in 2025 and \$395 for work performed in 2026. Kaufman declares that he has practiced law since 2003, has devoted more than twenty-three years to litigating lemon law matters, previously and has handled thousands of lemon law matters. (Kaufman Decl., ¶¶ 3-10.) Kaufman further declares that numerous California courts have approved his requested hourly rates. (Id., ¶¶ 6-8.) Hunt declares that he has exclusively practiced consumer lemon law since joining Joseph Kaufman & Associates in 2023, has successfully handled more than 100 lemon law matters, and that numerous California cases approved his requested hourly rates. (Hunt Decl., ¶¶ 6-9.)

Defendant

argues the requested hourly rates are excessive because this was a routine Song-Beverly action and do not reflect the prevailing market rates for similar work. Defendant further contends the requested rates are unreasonable in light of the complexity of the case and that Plaintiff's proposed lodestar does not represent noncontingent market rates for the services provided. Defendant argues reasonable hourly rates would instead be \$450 for Kaufman, \$350 for Agyeman, and \$250 for Hunt. (Opposition, pp. 12-15.)

The Court

is not persuaded. Defendant's proposed rates appear to be based primarily on its characterization of this case as routine rather than evidence of the prevailing market rate for attorneys of comparable skill and experience. Plaintiff, on the other hand, submitted competent evidence supporting the requested rates through counsel's declarations and numerous recent fee awards approving comparable rates. Thus, the Court finds the requested hourly rates reasonable.

Reasonable Hours Incurred:

The party seeking fees and costs

bears the burden to show "the fees incurred were allowable, were reasonably necessary to the conduct of the litigation, and were reasonable in amount." (Nightingale v. Hyundai Motor America (1994) 31 Cal.App.4th 99, 104.)

Here, Plaintiff seeks compensation

for 52.2 hours of attorney time incurred in prosecuting this action and supports the request with detailed billing records. (Kaufman Decl., ¶ 2, Exh. A.)

Defendant, in opposition, argues

the requested hours are unreasonable because this was a routine Song-Beverly action that Plaintiff unnecessarily over-litigated. Defendant contends certain billing entries are duplicative, arguing that Kaufman billed for reviewing discovery, deposition notices, and communications with the client regarding depositions that overlapped with Hunt's work. Defendant also asserts Hunt improperly billed 0.9 hours reviewing the file and a memorandum that had already been reviewed by Kaufman and Agyeman. Finally, Defendant argues

Plaintiff is not entitled to recover attorney's fees incurred after Defendant served its initial Code of Civil Procedure section 998 offer. (Opposition, pp. 10-12.)

The Court is not persuaded.

Although Defendant identifies categories of work it contends are duplicative, it does not identify with specificity the billing entries that should be excluded or demonstrate that the challenged work was unnecessary or unreasonable. General assertions that the requested fees are excessive or duplicative do not suffice. (*Lunada Biomedical v. Nunez* (2014) 230 Cal.App.4th 459, 488 quoting *Premier Med. Mgmt. Sys., Inc. v. California Ins. Guarantee Ass'n* (2008) 163 Cal.App.4th 550, 564.) On this record, the Court finds the requested hours reasonable.

The
Court finds the hours reasonable.

1.2 Lodestar multiplier

Plaintiff seeks a 1.2 multiplier (\$4,310.80) based on favorable outcome obtained, the contingent risk assumed by counsel, and delay in payment. (Motion, pp. 9-11.) Defendant argues a multiplier is unwarranted because this case did not present novel or complex issues requiring exceptional skill. (Opposition, pp. 15-16.)

The Court declines to apply a multiplier. While Plaintiff obtained a favorable result and counsel litigated this matter on a contingency basis, those circumstances are common to many Song-Beverly actions. Further, this case did not involve unusually complex or factual issues and resolved through settlement before trial.

Thus, the Court DENIES the request for 1.2 lodestar multiplier.

Costs

A prevailing buyer under the Song-Beverly Act is entitled to recover reasonably incurred costs and expenses. (Civ. Code, § 1794, subd. (d) Here, Plaintiff seeks \$2,511.26 in costs. (Hunt Decl., ¶ 2, Exh. 2.) Defendant does not oppose costs.

The Court finds the requested costs
were reasonably incurred and awards Plaintiff \$2,511.26 in costs.

IV. CONCLUSION AND ORDER

The Court
GRANTS Plaintiff's motion for attorney's fees and costs. Plaintiff is awarded \$21,554.00
in attorney's fees and \$2,511.26 in costs, for a total award of \$24,065.26. The
Court declines to apply the requested 1.2 lodestar multiplier.

Plaintiff is to give notice.

Dated: July 15, 2026

JARED

D. MOSES

JUDGE OF THE SUPERIOR COURT